
AGREEMENT

THIS AGREEMENT is made between Thameside Homes Limited ("Thameside") and Courtyard Management Company (Rock Lane Farm) Limited ("CMC").

1. Thameside shall within 28 days of the date of this agreement apply to HM Land Registry to amend the title plan for Title BM308821, so as to remove from that title the land conveyed by Thameside to Mr and Mrs Bickers of number 11 The Courtyard, Liscombe Park, Soulbury.
2. Thameside shall within 28 days of the date of this agreement apply, if necessary, to HM Land Registry with the consent of Mr and Mrs Bickers to amend the title plan for number 11 The Courtyard, Liscombe Park, Soulbury so as to reflect the actual premises conveyed to them by Thameside.
3. Thameside shall within 7 days of receipt of confirmation from HM Land Registry that the above applications have been completed transfer to CMC the Communal Areas defined in the sale agreements of the freehold and leasehold residential units at The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury for the consideration of £1, such transfer to be by reference to the title plan for the above title number as amended pursuant to the above paragraphs..
4. The transfer of the Communal Areas shall include a covenant by CMC for the benefit of the land at Liscombe Park, Soulbury which is currently owned by Liscombe Park Limited to observe and perform the restrictive or other covenants contained or referred to in title number BM308821 so far as they relate to the land transferred and to indemnify Thameside against any liability resulting from their future breach or non- observance.
5. The transfer referred to in paragraph 3 above shall include an easement granting to Thameside the right to lay, construct and connect water, soil, effluent, gas, fuel oil, electricity, telephone, telephonic signals, television, visual audio, fax, electronic mail data information, communication and other services for the benefit of its land which is retained from the said title, under or through the land transferred by the said transfer,

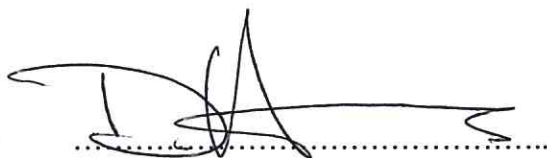


subject in the case of any use of sewage pipes to a proportionate contribution being made to the cost of maintaining the bio-digester on the transferred land. Provided that Thameside will not make any new connection into the bio-digester unless and until it has satisfied CMC that the additional effluent will not compromise or otherwise overload the plant and Thameside will not transfer or otherwise dispose of any land with the benefit of a connection to the bio-digester without first obtaining a covenant from the transferee to pay a fair proportion of the cost of maintaining the bio-digester.

6. Thameside will upon execution of the said transfer obtain a certificate from a solicitor confirming compliance with paragraph 10 of Schedule 5 in the Deed of Easement dated 26 March 2003.
7. Thameside confirms that so far as it is aware there are no written or formal agreements relating to the use for the benefit of any other property of the bio-digester, which is located on the land to be transferred but it is aware that by a deed dated 4th June 2008 it acknowledged to the owners of 8 Rock Lane Farm that a connection had been made into the bio-digester for the benefit of that property.
8. David Harris on behalf of Thameside acknowledges that the resolution of this dispute has taken far too long and he apologises on behalf of Thameside for their share of the responsibility for that.
9. Thameside will take no action in respect of any dispute with Kevin Smith of number 13 The Courtyard, Liscombe Park, Soulbury regarding the current location of the boundary fence to his garden and Thameside will within seven days write to Mr Smith to confirm this.
10. Thameside will within 28 days of the dated of this agreement remove from the Communal Areas the blue/green container which is located or partially located thereon.
11. CMC will pay to Thameside the sum of £10,250 on completion of the transfer in paragraph 3 above in respect of the contribution claimed by Thameside against the freehold and leasehold residents of the Courtyard in respect of expenditure incurred by Thameside on repairing and maintaining the access way and other services to their properties.
12. This agreement is made in full and final settlement of all issues between the parties.



Signature



28th Oct. 2013

For and on behalf of Thameside Ltd

Signature



28th October 2013.

For and on behalf of Courtyard Management Company (Rock Lane Farm) Ltd

